

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Cool Living LLC, *Complainant*

v.

ALPI U.S.A., Inc. and ALPI Air & Sea A/S,
Respondents.

DOCKET NO. 25-28

**RESPONDENTS'
OPPOSITION TO COMPLAINANT'S
MOTION TO QUASH NOTICES OF
DEPOSITION OR, IN THE
ALTERNATIVE, FOR A
PROTECTIVE ORDER**

Respondents ALPI U.S.A., Inc. and ALPI Air & Sea A/S (collectively, “Respondents” or “ALPI”) submit this Response in opposition to the Motion to Quash Notices of Deposition or, in the Alternative, for a Protective Order (the “Motion”) filed by Complainant Cool Living LLC, and in response to the Presiding Officer’s Order Setting Status Conference served June 10, 2026. The Motion should be denied; the depositions of Cool Living’s two members should proceed remotely, on terms the Presiding Officer may set, with scheduling addressed at the status conference.

I. PRELIMINARY STATEMENT

This dispute started in New York. ALPI sued there first, in the New York Supreme Court (Index No. 655504/2025), to recover approximately \$89,025.97 in unpaid invoices for the very transportation, customs, and warehousing services at issue here. Cool Living answered that suit and then opened a second front, filing this proceeding to recast the same commercial dispute as a Shipping Act claim and to demand civil penalties for ALPI’s supposedly knowing and willful conduct. Having chosen to prosecute that case, Cool Living now asks the Presiding Officer to forbid ALPI from deposing the only two witnesses who could prove or disprove it.

Cool Living refused the noticed dates, refused every alternative ALPI offered, and now seeks the most drastic relief the rules allow: an order forbidding the depositions outright, barring any re-notice, and replacing live testimony with declarations Cool Living itself would draft and that ALPI could never test by cross-examination. The only objections with any substance, the

remote format and the witnesses' foreign residence, are matters the Presiding Officer may resolve by setting terms under 46 C.F.R. §§ 502.141(j), 502.142(b), and 502.143(b)(4); they are reasons to order the depositions on appropriate terms, not to bar them. The time pressure Cool Living invokes is of its own making: its counsel circulated a draft one-month extension that ALPI was willing to join, and Cool Living refused to authorize it.

Cool Living cannot have it both ways. It chose this forum, it identified Mr. Hopkins and Ms. Farkas as its only witnesses with knowledge of every contested issue, and it seeks damages and civil penalties built entirely on their account of events. A complainant cannot rest its whole case on its two principals and, at the same time, bar the opposing party with prejudice from ever questioning them. ALPI is the Respondent, defending claims Cool Living elected to bring, and it is entitled to a fair opportunity to test them. The Motion should be denied, and the depositions should proceed promptly, on the terms set forth below.

II. PROCEDURAL AND FACTUAL BACKGROUND

Cool Living LLC's only members are Tony Hopkins and Anna Farkas, who have "served as members from the date of incorporation" and whose verified interrogatory responses Mr. Hopkins signed as "the owner of Cool Living LLC." (Resp. to Interrog. No. 6 & Verification.) Cool Living's Initial Disclosures (served January 21, 2026) and verified interrogatory responses (served April 10, 2026) identify these two members as the only persons with knowledge supporting its claims: Mr. Hopkins as to the escalation period, the demand letters, the billing reconciliation, and the alleged false statements about the bond and invoicing, and Ms. Farkas as to the ALPI booking and pricing communications, the credit application and COD decision, the pre-dispute correspondence, and the bond-termination sequence. (Resp. to Interrog. Nos. 1, 2, 6.). The parties have since exchanged substantial document productions, including approximately 1,372 documents and more than 10,000 pages from Cool Living. In its June 4, 2026 Motion to Withdraw, Cool Living's counsel acknowledged that ALPI advised it would seek deposition discovery.

During the parties' May 29, 2026 meet-and-confer concerning Holland & Knight LLP's ("H&K") anticipated motion to withdraw as Cool Living's counsel, the parties discussed both the withdrawal and a schedule extension. ALPI stated that it did not oppose the withdrawal but emphasized that any withdrawal should not prejudice ALPI's discovery rights, including its right to take deposition discovery from Cool Living. The parties discussed a joint one-month extension, and ALPI was willing to proceed with the extension reflected in the draft that H&K circulated.

H&K filed its motion to withdraw on June 4, 2026, but did not file the extension. As H&K's Mr. Nolan advised ALPI, H&K was unable to receive authorization from Cool Living to file the extension motion in the FMC action. With the discovery deadline therefore unchanged, ALPI served its Notices of Deposition on June 5, 2026 upon H&K, Cool Living's counsel of record, setting the deposition of Ms. Farkas for June 11, 2026 and Mr. Hopkins for June 12, 2026. ALPI has, on multiple occasions, stated that it would work with H&K on scheduling the depositions, including virtual depositions, and on any potential extension of the deadlines.

On June 8, 2026, the Presiding Officer granted H&K's withdrawal motion only in part, made withdrawal effective June 14, 2026, ordered H&K to remain counsel of record for communications through June 13, and required H&K to "represent Complainant at any deposition conducted on or before the discovery deadline of June 13, 2026." The same day, Mr. Hopkins filed a Notice of Appearance and a § 502.71(a) conferral email. ALPI declined to withdraw the Notices but offered to move Ms. Farkas's deposition to June 12 and Mr. Hopkins's to June 13, both within the discovery window. Cool Living refused to produce either witness on any date.

III. LEGAL STANDARD

Commission Rule 143(b)(1) requires that a party seeking to depose a person "give reasonable written notice to every other party." 46 C.F.R. § 502.143(b)(1). The Rule does not define "reasonable," and where no specific Commission rule governs, the Federal Rules apply to the extent consistent with sound administrative practice. *Id.* § 502.12. Whether notice is reasonable

is a fact-sensitive inquiry. See *In re Sulfuric Acid Antitrust Litig.*, 231 F.R.D. 320, 327–28 (N.D. Ill. 2005). Although Federal Rule of Civil Procedure 32(a)(5) treats fewer than fourteen days as “short notice,” it does not prohibit short-notice depositions, and District of Columbia Local Civil Rule 30.1 makes seven days presumptively reasonable; accordingly, seven days is not “per se impermissibly short.” *Samsung Electronics America, Inc. v. SM Line Corp.*, Docket No. 23-01, 2024 FMC LEXIS 61, at *4–*5 (F.M.C. OALJ Jan. 24, 2024). A party served with a deposition notice may seek a protective order, but only “for good cause,” and the movant bears the burden. 46 C.F.R. § 502.141(j).

IV. ARGUMENT

A. The Notices Are Proper Individual Fact-Witness Notices

A party “may, by oral questions, depose any person, including a party, without leave of the presiding officer,” subject only to limits not at issue here. 46 C.F.R. § 502.143(a)(1). The only formal requirement for such a notice is that the noticing party “give reasonable written notice to every other party” stating “the time and place of the deposition and, if known, the deponent’s name and address.” *Id.* § 502.143(b)(1). The Notices satisfy that standard: each identifies the deponent by name, the date and time, and the place (remote videoconference).

Cool Living’s principal argument, that the Notices are fatally defective for failing to ‘describe with reasonable particularity the matters for examination,’ rests on 46 C.F.R. § 502.143(b)(6). But that rule applies only where a party names an organization as the deponent, in which case the notice must state the topics and the organization then designates a representative to testify on its behalf. As the Commission recently explained, § 502.143(b)(6) governs where a party “‘name[s] as the deponent’ an organization,” which must then ‘describe with reasonable particularity the matters for examination’ so that the organization can ‘designate one or more individuals to testify on its behalf.’ *FormuKleen, Inc. v. Top Shipping Systems, Corp.*, Docket No. 25-08, 2026 FMC LEXIS 423, at *4 n.2 (F.M.C. OALJ June 5, 2026). The Notices do not name

Cool Living LLC as the deponent; they name two natural persons, and for an individual deposition Rule 143(b)(1) requires only the time, the place, and the deponent's name and address. The topic-particularity requirement of § 502.143(b)(6) therefore does not apply, and the absence of a topic list is not a defect.

Moreover, the descriptive phrase "an officer, director, owner, and/or managing representative of Cool Living LLC" does not convert individual notices into an organizational deposition. That language identifies the witnesses' status, relevant because, under 46 C.F.R. § 502.149(a)(3), an adverse party may use the deposition of a party's "officer, director, managing representative, or designee" for any purpose, and it mirrors Cool Living's own characterization of these two individuals as its members and principals. It does not designate topics, and it does not purport to bind the company.

In any event, Cool Living's complaint that it cannot know whom to "designate" or how to prepare is academic: its only members are Mr. Hopkins and Ms. Farkas, so the same two people would testify whether the depositions are styled individual or organizational. (Resp. to Interrog. No. 6.). To remove any doubt, Respondents confirm that they seek the individual fact testimony of Mr. Hopkins and Ms. Farkas in their personal capacities and do not notice an organizational deposition under § 502.143(b)(6).

B. The Notices Are Timely, and Notice to Counsel of Record Was Reasonable.

As a threshold matter, the Notices are timely. They set the depositions for dates within the discovery period that closes June 13, 2026, and ALPI was under no obligation to notice them earlier. Cool Living's reliance on the Initial Order's direction that the parties "serve discovery requests sufficiently in advance of the discovery cutoff so that all responses and objections are due on or before that date" is misplaced. That directive governs written discovery, interrogatories, requests for production, and requests for admission, which generate written responses and

objections that must fall due by the cutoff. An oral deposition is conducted, not answered in writing, and may be taken up to and including the close of discovery. ALPI noticed these depositions for June 11 and 12, and offered June 13, each within the discovery window. They are timely. ALPI served the Notices after the parties had completed their written discovery and document exchange.

Moreover, Section 502.143(b)(1) requires only “reasonable” written notice and sets no minimum number of days. The reasonableness inquiry is case-specific: “all that is required is that the notice be reasonable under the circumstances,” and even shorter notice has been upheld as a matter of law. *F.A.A. v. Landy*, 705 F.2d 624, 634 (2d Cir. 1983); accord *Davidson v. Dean*, 204 F.R.D. 251, 256 (S.D.N.Y. 2001) (eight days reasonable; collecting cases). On the facts here, the notice was reasonable whether measured from ALPI’s May 29 statement of intent to depose or, at a minimum, from the six and seven days’ formal notice that followed. *Samsung* confirms the point. There, the Presiding Officer found seven days’ notice unreasonable only because the notice sought a Rule 143(b)(6) corporate-designee deposition on twenty-nine broad topics, requiring the company to prepare a designee to speak for the corporation on a few business days’ notice; “a corporate deposition is fundamentally different from an individual deposition.” 2024 FMC LEXIS 61, at *5. None of that is present here: ALPI noticed individual fact depositions of Cool Living’s two members, already identified as its knowledge witnesses, with no designee to select and no topics to prepare.

Cool Living was on notice of these depositions in May, and in all events no later than June 5. ALPI told Cool Living at the May 29, 2026 meet-and-confer that it intended to depose, and Cool Living’s own filings confirm it: its June 4 Motion to Withdraw represents that “ALPI advised it will seek [a] deposition of Cool Living,” and its Motion to Quash recounts the same May 29 discussion. The Presiding Officer, too, treated the depositions as expected, holding that H&K’s

withdrawal could not take effect before June 13 because ALPI contemplated taking a deposition. That notice, from May, is alone enough to defeat any claim of surprise.

Even measured only from the formal Notices, the timing was reasonable. ALPI served the Notices on June 5, 2026 on H&K, Cool Living's counsel of record, and service on counsel of record is service on the party; the June 8 Order confirms H&K remained counsel through June 13. That was seven days' notice for the Hopkins deposition and six for the Farkas deposition, and ALPI's offered dates gave both witnesses at least seven days, meeting or exceeding the seven-day period that LCvR 30.1 treats as presumptively reasonable. ALPI's accommodation gave Cool Living more time, not less, which Cool Living refused. The deponents are Cool Living's own members, already disclosed as its knowledge witnesses. There was no surprise.

Cool Living's remaining authorities do not help it: the short-notice cases involved Rule 30(b)(6) corporate-designee depositions (*Gulf Production, Nieman*) or a failure to show good cause to modify a scheduling order (*Gestetner, Johnson*), while *Paige* and *Holloway*, if anything, favor allowing key depositions on appropriate terms. None supports barring the individual fact depositions of a party's two principals; at most, any timing concern is cured by resetting the dates under § 502.141(j)(1)(ii), not by forbidding the depositions.

C. There Is No Subpoena to “Quash”; the Motion Is a § 502.141(j) Protective-Order Request on Which Cool Living Bears the Burden.

Cool Living frames its request as a “motion to quash” under the subpoena standard of § 502.132 and *Hapag-Lloyd, A.G.*, Docket No. 21-09. But § 502.132 governs subpoenas, and none issued here. A party's own members appear by notice, and the party is obligated to produce its principals, so there is nothing to “quash.” The Motion is in substance a request for a protective order under § 502.141(j), on which Cool Living bears the burden of showing good cause. To carry that burden, a movant “may not rely upon stereotyped and conclusory statements, but must present a particular and specific demonstration of fact as to why a protective order should issue.” *Weirton*

Med. Ctr., Inc. v. R&V Assocs., No. 5:19CV199, 2019 U.S. Dist. LEXIS 230129, at *7 (N.D.W. Va. Dec. 13, 2019) (quoting *Small v. Ramsey*, 280 F.R.D. 264, 269 (N.D.W. Va. 2012)). Cool Living has not carried that burden. Its motion offers no evidence that Mr. Hopkins or Ms. Farkas is actually unavailable, no particular hardship beyond general assertions about time zones and preparation time, and no explanation of why the company's own two principals cannot testify to the claims they have brought. A protective order requires a showing of clearly defined and serious injury, shown with specificity; Cool Living's demand that ALPI instead prove "necessity" inverts that standard. The defects it asserts are curable scheduling terms, addressed below, not good cause to bar these depositions.

D. The Format and Foreign-Residence Issues Are Curable Terms.

Section 502.143(b)(4) permits a remote deposition by stipulation or, on motion, by order of the presiding officer. The Notices condition the remote format on exactly that, so Cool Living's refusal to stipulate does not bar the depositions; it simply means the Presiding Officer should so order. Section 502.142(b) provides multiple paths for a deposition abroad, including before a person the Commission or presiding officer authorizes to administer the oath and take testimony, and such authorization may issue without any showing that another manner is impracticable. 46 C.F.R. § 502.142(b)(1)(iv), (b)(2)(ii). Those mechanisms exist to reach unwilling third parties; they pose no barrier to deposing Cool Living's own members, whom it controls and must produce, and the Presiding Officer can simply order Cool Living to produce them remotely before a U.S.-based officer under § 502.142(b)(1)(iv). Cool Living, which chose this forum, is in no different position: a litigant who invokes a domestic forum may be compelled to be deposed there. *See In re Chong*, 13 B.R. 468, 470–71 (Bankr. D. Haw. 1981). Any concern about the local hour for Ms. Farkas (Spain) or Mr. Hopkins (Finland) is a matter of scheduling, not a basis for prohibition. ALPI is prepared to accommodate the time difference, whether by beginning earlier in the Eastern day so each session ends at a reasonable evening hour abroad, or by conducting each deposition in

two shorter sittings. Each is a “term” the Presiding Officer may set under § 502.141(j)(1)(ii)–(iii).

E. The Relief Cool Living Seeks Is Grossly Overbroad.

When good cause for a protective order exists, the rule supplies a graduated menu of remedies, ranging from “forbidding the disclosure or discovery” to “specifying terms, including time and place,” and “prescribing a discovery method other than the one selected by the party seeking discovery.” 46 C.F.R. § 502.141(j)(1)(i)–(iii). The structure of the rule reflects that prohibition is the most drastic option, appropriate only where lesser, tailored terms will not suffice.

Cool Living seeks the opposite. It asks the Presiding Officer not merely to reset the dates but to forbid the depositions outright, to bar ALPI from ever re-noticing either witness, and to substitute declarations or affidavits, drafted by Cool Living and immune from cross-examination, for live testimony. Barring depositions of the opposing party’s only two members, and replacing examination with self-serving affidavits, is disproportionate and contrary to the design of § 502.141(j). Cool Living’s own authority for the affidavit substitution, *Way Interglobal Network, LLC v. Shenzhen Unifelix SCM Ltd.*, Docket No. 22-28, involved declarations adopted by the mutual agreement of the parties; it is no authority for imposing them over an opposing party’s objection.

More fundamentally, the relief Cool Living seeks would deny ALPI a fair opportunity to defend. As the party defending against Cool Living’s affirmative claims, including its demand for damages premised on ALPI’s allegedly knowing and willful conduct, ALPI is entitled to test those claims through the depositions of the only two witnesses Cool Living has identified as supporting them. A party may not put its principals forward as the sole sources of its case and at the same time immunize them from examination. Live examination is how ALPI would test these witnesses’ credibility, probe any inconsistency between their account and the documentary record, and develop the factual basis of the knowing-and-willful allegations on which the damages demand

depends; a declaration drafted by Cool Living's counsel and insulated from questioning is no substitute. The "no re-notice" relief Cool Living requests is a permanent, with-prejudice extinguishment of ALPI's discovery rights that no provision of the Commission's rules authorizes and that would prejudice ALPI's defense on the merits.

Finally, if completing the depositions by June 13 is a concern, the cure is a brief extension of the discovery deadline, no more than two weeks, to take these two depositions, not prohibition. Such an extension would not disturb the briefing or discovery schedule or prejudice either party, and § 502.141(j)(1)(ii) expressly authorizes it.

V. CONCLUSION

For the foregoing reasons, Respondents respectfully request that the Presiding Officer deny the Motion and enter an order that: (1) confirms the depositions of Mr. Hopkins and Ms. Farkas shall proceed as individual fact depositions; (2) authorizes them to proceed by remote videoconference under 46 C.F.R. § 502.143(b)(4); (3) authorizes a United States-based officer to administer the oath remotely under § 502.142(b)(1)(iv); and (4) directs that the deposition dates and scheduling be set at the status conference, including, if needed to accommodate scheduling, a brief extension of the discovery deadline of no more than two weeks for the limited purpose of completing these two depositions. At minimum, the Presiding Officer should deny Cool Living's requests to bar re-notice or substitute declarations, and deny its request for costs and fees.

Respectfully submitted,

Dated: June 11, 2026

MARTIN DAHLGAARD ATTORNEY P.C.

/s/ Daniel E.L. Bang

Daniel E.L. Bang

45 Main Street, Suite 29

Brooklyn, NY 11202

Tel: (646) 580-9880

delb@usadenmarklaw.com

Counsel for Respondents

MILLER & MARTIN PLLC

/s/ Michael P. Kohler

Michael P. Kohler

1180 W. Peachtree Street NW, Suite 2100

Atlanta, Georgia 30309

Tel: (404) 962-6100

Michael.Kohler@millermartin.com

Counsel for Respondents

CERTIFICATE OF SERVICE

I hereby certify that on this 11th day of June, 2026, a true and correct copy of the foregoing Respondents' Response in Opposition was served via electronic mail upon Christopher R. Nolan (chris.nolan@hklaw.com) and Ashleigh T. Higgs (ashleigh.higgs@hklaw.com), Holland & Knight LLP, counsel of record for Complainant Cool Living LLC; Tony Hopkins (tony@thatcooliving.com), representative of Complainant Cool Living LLC; and the Office of the Secretary, Federal Maritime Commission, at secretary@fmc.gov, with a courtesy copy to judges@fmc.gov.

/s/ Daniel E.L. Bang

Daniel E.L. Bang